

P O R T E R | S C O T T

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Attorneys for Defendants,

CSAA INSURANCE EXCHANGE, CARBONE,

SMITH & KOYAMA, AND MICHAEL R. CHAMBERS

SUPERIOR COURT OF CALIFORNIA, COUNTY OF SAN FRANCISCO

FRANCISCUS DYLAN ROSARIO,

Plaintiff,

v.

SUBHI ABDELHALIM; CSAA
INSURANCE EXCHANGE; DOES 1
through 50, inclusive,

Defendants.

Case No.: CGC-25-631801

**DEFENDANTS' STATEMENT OF
DEMURRER TO PLAINTIFF'S FIRST
AMENDED COMPLAINT**

DATE: MAY 12, 2026

TIME: 9:00 A.M.

DEPT: 301

Complaint Filed: December 23, 2025

Amended Complaint Filed: February 25, 20

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ELECTRONICALLY

FILED

*Superior Court of California,
County of San Francisco*

04/13/2026

Clerk of the Court

BY: AUSTIN LAM

Deputy Clerk

1 Defendants CSAA INSURANCE EXCHANGE, CARBONE, SMITH & KOYAMA, AND
2 MICHAEL R. CHAMBERS (“Defendants”) hereby object, by demurrer pursuant to California
3 Code of Civil Procedure § 430.10(e), to Plaintiff FRANCISCUS DYLAN ROSARIO’s First
4 Amended Complaint (“FAC”) on the following grounds:

- 5 1. As to the sole cause of action, the FAC improperly targets protected litigation
6 conduct under Civil Code § 47(b) and Code Civ. Proc. § 425.16 and is therefore
7 barred as a matter of law.
- 8 2. As to the sole cause of action, the requisite statute of limitations precludes the claim.
9 (Code of Civil Procedure § 473(b).)
- 10 3. As to the sole cause of action, Plaintiff lacks standing to sue these demurring
11 Defendants.
- 12 4. As to the sole cause of action, this Court has no jurisdiction of the subject of the
13 cause of action alleged in the pleading. (Code of Civ. Proc., § 430.10, subd.(a).)
- 14 5. As to the sole cause of action, there is another action pending between the same
15 parties on the same cause of action.. (Code of Civ. Proc., § 430.10, subd.(b).)
- 16 6. As to the sole cause of action, there is a defect or misjoinder of parties. (Code of Civ.
17 Proc., § 430.10, subd.(d).)
- 18 7. As to the sole cause of action, the pleading fails to allege facts sufficient to constitute
19 any cause of action against Defendants. (Code of Civ. Proc., § 430.10, subd.(e).)
- 20 8. As to the sole cause of action, the pleading is uncertain (Code of Civ. Proc., § 430.10,
21 subd.(f).)

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1 WHEREFORE, Defendants pray that their Demurrer be sustained without leave to amend,
2 that Plaintiff take nothing by his First Amended Complaint, and for all other proper relief.

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4 Dated: April 13, 2026

PORTER SCOTT
A PROFESSIONAL CORPORATION

Tyler J. O'Connell

By _____
Chad S. Tapp
Tyler J. O'Connell
Attorneys for Defendants
CSAA INSURANCE EXCHANGE,
CARBONE, SMITH & KOYAMA, AND
MICHAEL R. CHAMBERS

1 ***Franciscus Dylan Rosario v. Subhi Abdelhalim; CSAA Insurance Exchange; et al.***
2 ***San Francisco County Superior Court Case No.: CGC-25-631801***

3 **PROOF OF SERVICE**

4 At the time of service, I was over 18 years of age and not a party to this action. My business
5 address is 2180 Harvard Street, Suite 500, Sacramento, California 95815.

6 On April 13, 2026, I served the following document: **DEFENDANTS' STATEMENT OF**
7 **DEMURRER TO PLAINTIFF'S FIRST AMENDED COMPLAINT.**

8 X	BY REGISTERED/CERTIFIED MAIL, RETURN RECEIPT REQUESTED: I caused to be served the above referenced document(s) by registered or certified mail, return receipt requested, with the United States Postal Service, in a sealed envelope with postage fully prepaid.
9	BY PERSONAL SERVICE: I caused such document to be personally delivered to the person(s) addressed below. (1) For a party represented by an attorney, delivery was made to the attorney or at the attorney's office by leaving the documents, in an envelope or package clearly labeled to identify the attorney being served, with a receptionist or an individual in charge of the office, between the hours of nine in the morning and five in the evening. (2) For a party, delivery was made to the party or by leaving the documents at the party's residence with some person not younger than 18 years of age between the hours of eight in the morning and six in the evening.
10	BY OVERNIGHT DELIVERY: I enclosed the documents in an envelope or package provided by an overnight delivery carrier and addressed to the person(s) listed below. I placed the envelope or package for collection and overnight delivery at my office or a regularly utilized drop box of the overnight delivery carrier.
11	BY ELECTRONIC TRANSMISSION: By electronically serving the document(s) to the electronic mail address set forth below on this date before 11:59 p.m. pursuant to Code of Civil Procedure section 1010.6(a)(2), (4) and (5).

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16 Addressed as follows:

17 **PLAINTIFF, IN PRO PER**

18 Franciscus Dylan Rosario
19 7624 Melody Drive
20 Rohnert Park, CA 94928
21 soltrinox@gmail.com

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23 I declare under penalty of perjury under the laws of the State of California that the foregoing
24 is true and correct. Executed on Sacramento, California on April 13, 2026.

25 ***Monique Schubert***
26 Monique Schubert
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